

HOUSE No. 2846**The Commonwealth of Massachusetts**

PRESENTED BY:

Jessica Ann Giannino

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to disability or death cause by contagious disease; presumption.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jessica Ann Giannino</i>	<i>16th Suffolk</i>	<i>1/15/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>1/23/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>1/23/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>1/23/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>1/23/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/23/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/23/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/23/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/23/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/23/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>1/23/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>1/23/2025</i>
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>1/23/2025</i>
<i>Joseph W. McGonagle, Jr.</i>	<i>28th Middlesex</i>	<i>1/23/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>1/23/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/27/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>1/27/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/27/2025</i>

<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>1/27/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/27/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/30/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>1/30/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/3/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/4/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/10/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/10/2025</i>
<i>Daniel Cahill</i>	<i>10th Essex</i>	<i>2/10/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/13/2025</i>
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>2/20/2025</i>
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>2/20/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>2/24/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/24/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>3/5/2025</i>
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>3/5/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/17/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>3/19/2025</i>
<i>Bridget Plouffe</i>	<i>9th Plymouth</i>	<i>3/19/2025</i>
<i>Kenneth P. Swezey</i>	<i>6th Plymouth</i>	<i>3/19/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>3/26/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>4/1/2025</i>
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>4/2/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>4/2/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>4/3/2025</i>
<i>Donald H. Wong</i>	<i>9th Essex</i>	<i>4/3/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>4/3/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>4/8/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>4/8/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/6/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>5/19/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>6/10/2025</i>
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>6/26/2025</i>

HOUSE No. 2846

By Representative Giannino of Revere, a petition (accompanied by bill, House, No. 2846) of Jessica Ann Giannino and others relative to the presumption for disability or death cause by contagious diseases. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to disability or death cause by contagious disease; presumption.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 32 of the General Laws is hereby amended by inserting after section 94B the
2 following new section: Section 94C.

3 (1) Notwithstanding the provisions of any general or special law to the contrary, and for
4 the purposes of any death, disability or medical services claim including claims under Chapter
5 32, Chapter 41 and Chapter 152 of the General Laws, any contagious disease, resulting in
6 disability or death to a full-time uniformed member of a paid police department, fire department
7 or municipal emergency medical service shall, if the person successfully passed a physical
8 examination on entry into such service or subsequent to such entry, which examination failed to
9 reveal any evidence of such condition, be presumed to have been suffered in the line of duty,
10 unless it is shown by a preponderance of the evidence that non-service connected risk factors or
11 non-service connected accidents or hazards undergone, or any combination thereof, caused such
12 incapacity. The provisions of this section shall only apply if the disabling or fatal condition is a

13 type of contagious disease which may, in general, result from exposure to blood and other body
14 fluids of the sick, excluding the common cold.

15 (2) Any person first discovering any such condition within five years of the last date on
16 which such person actively served shall be eligible to apply for benefits hereunder, and such
17 benefits, if granted, shall be payable as of the date on which the employee last received regular
18 compensation. The provisions of this section shall not apply to any person serving in such
19 position unless such person shall first establish that they regularly responded to calls for police,
20 fire or emergency medical service during some portion of the period of their service in such
21 position.

22 (3) The provisions of this section shall also apply to any condition of COVID-19,
23 Hepatitis A, B, or C, Tuberculosis, HIV, and any other contagious disease which is found by
24 regulation by the commissioner of the department of public health to have a statistically
25 significant correlation with police, fire or emergency medical service.

26 (4) Nothing herein shall preclude a member from applying for and receiving benefits
27 under section seven or section nine, subject to the provisions of said sections.